

Present

Mr. Justice Sheikh Abdul Awal

Criminal Appeal No. 103 of 2015

Md. Kamal Pasha

.....Convict-appellant.

-Versus-

The State and another

.....Respondents.

None appears

.....For the convict-appellant.

None appears

.....For the Respondent No. 2.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with,
Ms. Koheenoor Akter, A.A.G.

..... For the State.

Judgment on 22.01.2024

Sheikh Abdul Awal, J:

This Appeal at the instance of convict appellant, Md. Kamal Pasha is directed against the judgment and order of conviction and sentence dated 13.11.2013 passed by the learned Sessions Judge, Sirajgonj in Sessions Case No. 402 of 2013 arising out of C.R. Case No. 100 of 2013 (Sadar) convicting the appellant under section 138 of the Negotiable Instruments Act, 1881 and sentencing him thereunder to suffer rigorous

imprisonment for a period of 1 (one) year and to pay a fine of Tk. 25,44,000/- (Twenty five lakhs forty four thousand) in default to suffer simple imprisonment for 03 (three) months more.

The gist of the case is that one, Most. Beauty Khatun as complainant filed a petition of complaint being C.R Case No. 100 of 2013 in the Court of the learned Judicial Magistrate, cognizance Court No.1, Sirajgonj against the convict-appellant under section 138 of the Negotiable Instruments Act, 1881 stating, inter-alia, that to register the land the accused-appellant took Taka 8,44,000/- on 06.04.2012 from the complainant-respondent No.2 and thereafter on various pretexts the accused-appellant did not register his land in favour of the complainant. Thereafter, in order to repay the said money the convict-appellant on 14.02.2013 issued a cheque of Tk 8,44,000/- (Eight lakhs forty four thousand) of Islami Bank Bangladesh Ltd., Sirajgonj Branch in favour of complainant respondent No.2 and thereafter, on 17.02.2013 the complainant respondent No. 2 presented the said cheque before the bank for encashment which was dishonoured for insufficient of fund and thereafter, the complainant sent a legal notice through his Advocate to the accused appellant on 26.02.2013 asking him to pay the cheque's amount

within 30 days but the accused-appellant did not pay any heed to it and hence, the case.

On receipt of the petition of complaint, the learned Additional Chief Judicial Magistrate, Sirajgonj examined the complainant under Section 200 of the Code of Criminal Procedure and took cognizance against the accused-appellant under section 138 of the Negotiable Instruments Act, 1881 and also issued summon against the accused-appellant him fixing next date on 17.06.2013.

Thereafter, in usual course the case record was sent to the Court of the learned Sessions Judge, Sirajgonj for trial, wherein the case was registered as Sessions Case No. 402 of 2013.

Ultimately, the accused-appellant was put on trial to answer a charge under section 138 of the Negotiable Instruments Act, 1881 to which the accused-appellant pleaded not guilty and prayed to be tried.

At the trial the complainant herself was examined as PW-1 and also exhibited some documents to prove its case while the defence examined none.

On conclusion of trial, the learned Sessions Judge, Sirajgonj by the impugned judgment and order dated 13.11.2013 convicted the accused appellant under

Section 138 of the Negotiable Instrument Act, 1881 and sentenced him thereunder to suffer rigorous imprisonment for a period of 1 (one) year and to pay a fine of Tk. 25,44,000/- (Twenty five lakhs forty four thousand) in default to suffer simple imprisonment for 03 (three) months more.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 13.11.2013, the convict-appellant preferred this criminal appeal.

No one found present to press the appeal on repeated calls despite of fact that this criminal appeal has been appearing in the list for hearing with the name of the learned Advocate for the convict appellant since long.

In view of the fact that this is a petty old case arising out of Negotiable Instruments Act, 1881, I am inclined to dispose of it on merit on the basis of the evidence and materials on record.

On perusal of record, it is found that the complainant-respondent No. 2 after exhausting all the legal formalities filed C.R. case No. 100 of 2013 (Sadar) under section 138 of the Negotiable Instruments Act against the convict appellant and during trial the

complainant herself was examined as PW-1 and exhibited some documents to prove her case.

To constitute an offence under Section 138 of the NI Act, the following elements need to be fulfilled:

1. A cheque should have been issued by the payer for the discharge of a debt or other liability.

2. The cheque should have been presented or deposited by the payee within a period of six months from the date of drawing of the cheque or within the period of validity of the cheque, whichever is earlier.

3. The payee should have issued a notice in writing to the payer within 30 days of receipt of information regarding the return of the cheque as unpaid from the bank.

4. The payer/drawer of the cheque should have paid the cheque amount within 30 days of receipt of the said notice from the payee.

5. If the payer is failed to pay in time the cheque amount, the payee should have filed a complaint within one month.

On an overall consideration of the facts, circumstances and the materials on record, it can be

easily suggested that all the above quoted key elements are exist in the present case.

On an analyses of impugned judgment and order of conviction and sentence dated 13.11.2013 passed by the learned Sessions Judge, Sirajgonj in Sessions Case No. 402 of 2013, I find no flaw in the reasonings of the trial Court or any ground to assail the same inasmuch as all the key elements of Section 138 of Negotiable Instruments Act are exist in the case.

The learned Judge of the trial Court below appears to have considered all the material aspects of the case and justly convicted the accused appellant under Section 138 of the Negotiable Instruments Act, 1881 and sentenced him thereunder to suffer rigorous imprisonment for a period of 1 (one) year and to pay a fine of Tk. 25,44,000/- (Twenty five lakhs forty four thousand) in default to suffer simple imprisonment for 03 (three) months more.

In the result the appeal is dismissed. The impugned judgment and order of conviction and sentence dated 13.11.2013 passed by the learned Sessions Judge, Sirajgonj in Sessions Case No. 402 of 2013 arising out of C.R. Case No. 100 of 2013 (Sadar) is affirmed.

Since the appeal is dismissed the convict appellant is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court shall take necessary steps to secure arrest against him.

The complainant-respondent No.2 is permitted to withdraw half of the cheque's amount as deposited in the Trial Court by the convict-appellant for the purpose of preferring this Criminal Appeal.

Send down the lower Court records at once.